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File No.: EXP202406400

RESOLUTION No.: R/00006/2025

Considering the complaint filed on April 12, 2024, with this Agency by A.A.A., against CONFORAMA ESPAÑA, S.A., for not having duly attended to their right of access.

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the complainant) exercised the right of access against CONFORAMA ESPAÑA, S.A. with NIF A79103222 (hereinafter, the respondent) and their request, as stated by the complainant, did not receive the legally established response.

The complainant states that they experienced a problem with the incorrect issuance of an invoice for their purchase of an ergonomic chair made on March 3, 2024, through the respondent's website. They assert that during the purchase, they specified that the billing details should be those of their partner; however, when picking up the order on March 5, 2024, at the Rivas (Madrid) warehouse, they were given an invoice with a mix of their personal data and that of their partner.

They indicate that after becoming aware of these facts, they requested a correction at the store, where they were told to send an email to manage the change. When requesting this change, the store asked for copies of the ID cards of both individuals and an authorization, something that the complainant considers disproportionate since the correct data was already in their user profile.

They maintain that on March 7, 2024, they contacted the Data Protection Officer (DPO) of the respondent requesting explanations regarding the mix of personal data and demanding the correction of the invoice. However, they claim to have received no response, despite the one-month period required by the regulations having elapsed.

They conclude by stating that the lack of attention to their request, as well as the inability to obtain the correct invoice for their quarterly VAT declaration as a self-employed individual, have been the reasons that motivated the filing of this complaint with the present authority.

The complainant provides various documents related to the complaint filed with this Agency and regarding the exercise of the right exercised:

- Screenshots of their user profile on the Conforama website where the correct data would appear.
- A copy of the issued invoice with the allegedly incorrect mixed data.
- Emails exchanged with the Rivas store and with the DPO, among which stands out the request for rectification made on March 7, 2024, sent to the address atencion.clientes@conforama.es, which is listed as the contact for the Data Protection Officer of the respondent in the privacy policy on their website.

SECOND: In accordance with Article 65.4 of the LOPDGDD, which has provided a mechanism prior to the admission of complaints filed with the AEPD, consisting of forwarding them to the Data Protection Officers designated by the controllers or processors of the data, for the purposes provided for in Article 37 of the aforementioned regulation, or to them when they have not designated them, the complaint was forwarded to the respondent entity for analysis and to respond to the complainant and this Agency within one month.

Despite being duly notified of the aforementioned transfer, no response was received from the respondent.

THIRD: The result of the transfer procedure indicated in the previous fact did not allow understanding the complainant's claims to be satisfied. Consequently, on July 12, 2024, for the purposes provided for in Article 64.1 of the LOPDGDD, the Presidency of the Spanish Agency for Data Protection agreed to admit the complaint for processing and informed the parties that the maximum period to resolve the present procedure, which is understood to have commenced with the aforementioned admission agreement, will be six months.

The mentioned agreement granted the respondent entity a hearing period, so that within ten working

days, they could present any allegations they deemed appropriate.

On July 22, 2024, a response from the respondent was registered, which merely indicated that they were attaching the canceled invoice and its rectification, without providing any document that proved they had responded to the request made by the complainant and, consequently, attended to the exercise of the requested right.

FOURTH: The allegations presented by the respondent were examined and are subject to transfer to the complainant, so that, within fifteen working days, they could formulate any allegations they consider appropriate, and no allegations were received from the respondent within the aforementioned period.

LEGAL GROUNDS

FIRST: The Presidency of the Spanish Agency for Data Protection is competent to resolve this matter, in accordance with the provisions of section 2 of Article 56 in relation to section 1 f) of Article 57, both of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, regarding the protection of

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natural persons regarding the processing of personal data and the free movement of such data (hereinafter, GDPR); and in Article 47 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD).

SECOND: In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for the Protection of Data is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as handling complaints submitted by a data subject and investigating the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, prior to the admission of the complaint that gives rise to this procedure, the complaint was forwarded to the responsible entity for analysis, requiring it to respond to this Agency within one month and to prove that it has provided the complainant with the appropriate response, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

This admission agreement determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states:

“1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of the following article.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint to be upheld.”

The purification of administrative responsibilities within the framework of a sanctioning procedure is not deemed appropriate, the exceptional nature of which implies that, whenever possible, preference should be given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be clarified in a sanctioning procedure and, consequently, the decision on its initiation, with no obligation to initiate a procedure based on any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that

with this procedure, the guarantees and rights of the claimant are duly restored.

THIRD: The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, deletion, opposition, the right to restrict processing, and the right to data portability are contemplated. The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR. In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the obligation to respond to the request for the exercise of rights made by the affected individual lies with the data controller.

The communication directed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language. Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the affected individual to specify the "data or processing activities to which the request refers." The right shall be deemed granted if the controller provides remote access to the data, considering the request fulfilled (although the data subject may request information regarding the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a period of six months, unless there is a legitimate reason for doing so. On the other hand, the request will be considered excessive when the affected individual chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected individual.

FOURTH: In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the data.

personal data concerning them and that are being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data in question, the recipients or categories of recipients to whom the personal data have been communicated or will be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if these have not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information on transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others.

For its part, the right to rectification, regulated in Article 16 of the GDPR, allows any person to request the correction of inaccurate or incomplete personal data being processed by a data controller. This

right aims to ensure that the data accurately reflects the situation of the data subject, in compliance with the accuracy principle established in the regulation. To this end, the data controller must proceed to rectify the data without undue delay.

In the case analyzed here, as evidenced by the documents provided in the complaint, the complainant exercised the rights of access and rectification in accordance with Articles 15 and 16 of the GDPR. However, the respondent did not address these requests within the time frame established by the regulation.

Subsequent to the admission of the complaint, the respondent, through a written submission dated 22/07/2024, attached the canceled invoice and a supposed rectification of the complainant's data, but did not provide any documentation proving that a formal response had been given to the request submitted by the complainant.

In this regard, it is worth noting that Article 12 of the GDPR requires the data controller to provide a clear, complete, and formal response to the data subject when exercising their rights. Such a response must comply with the principle of transparency, be understandable, and be issued within a maximum period of one month, unless there are duly justified exceptional circumstances. Likewise, the controller must detail the measures taken, the execution timelines, and, if the request is not complied with, explain the reasons in a substantiated manner.

Consequently, the failure to comply with the aforementioned obligation cannot be considered remedied solely by executing the requested action, such as rectifying inaccurate personal data. The lack of formal communication, regardless of whether such data has been rectified or not, prevents the obligation from being deemed fulfilled. The response is not a mere formality but a key element to ensure the protection of the rights of the data subject and transparency in the processing of personal data.

Therefore, in the present case, the request cannot be considered addressed, as the controller has not provided a formal and detailed response to the complainant, thus failing to comply with the obligations of Article 12 of the GDPR.

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In view of the cited provisions and others of general application, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO GRANT the complaint filed by A.A.A. and to urge CONFORAMA ESPAÑA, S.A. with NIF A79103222, to send the complainant a certification that addresses the requested right of access and rectification or to deny it with justification indicating the reasons why the request cannot be met, in accordance with the provisions of this resolution. The actions taken as a result of this resolution must be communicated to this Agency within the same timeframe. Failure to comply with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and to CONFORAMA ESPAÑA, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to vacancy in the position of Presidency and Deputy Presidency

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